

3 and

4 Fugate of the House

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6
7 An Act relating to the Tulsa Reconciliation Education
8 and Scholarship Program; amending 70 O.S. 2021,
9 Sections 2621, 2623, and 2625, which relate to
10 creation of and eligibility for the program;
11 providing purpose of program; modifying eligibility
12 for program; increasing income limit for certain
13 eligibility; directing income limit to be adjusted
14 annually; exempting certain applicants from certain
15 income limit; allowing certain form to be used to
16 verify income; removing certain eligibility criteria;
17 directing the Oklahoma State Regents for Higher
18 Education to give first priority status to certain
19 applicants; modifying process for verifying
20 documentation of lineage; directing certain rules to
21 include certain criteria; requiring application form
22 to include certain language; removing language
23 authorizing annual award of scholarships to certain
24 students; directing the State Regents to involve
certain community advisory committee in selection
process; providing for composition of and
appointments to advisory committee; directing certain
university president to submit a list of proposed
members; directing advisory committee to review
certain applications and make certain
recommendations; directing the State Regents to
select recipients from certain list; prescribing
income limitation for eligibility retention; limiting
the number of scholarships that may be awarded to
certain students; defining term; directing certain
students to be given priority; allowing certain
grants and scholarships to be used on certain
expenses; directing certain applicants to always be
given first priority status; updating statutory
language; and declaring an emergency.

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3 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

4 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2621, is
5 amended to read as follows:

6 Section 2621. There is hereby created the Tulsa Reconciliation
7 Education and Scholarship Program to preserve awareness of the
8 history and meaning of the civil unrest that occurred in Tulsa in
9 1921. The purpose of the program is to provide a scholarship award
10 to ~~residents~~ high school students of the Tulsa School District,
11 which was greatly impacted both socially and economically by the
12 civil unrest that occurred in the City of Tulsa during 1921.
13 Beginning with the 2002-2003 school year, or as soon thereafter as
14 practicable, and subject to the availability of funds, the program
15 shall each year make scholarships available to as many students as
16 feasible, up to three hundred scholarships, to qualified ~~residents~~
17 students of the Tulsa School District, and to qualified students of
18 any other public school district in this state who are direct lineal
19 descendants as defined in subsection C of Section 2623 of this title
20 and who meet the criteria set forth in Sections 2623 and 2624 of
21 this title, and who are intending to pursue studies at an
22 institution of higher education in The Oklahoma State System of
23 Higher Education or a private institution of higher education, in
24 this state or who are intending to pursue studies in a postsecondary

1 career and technology education program in this state. The
2 scholarship shall be an amount ~~of not more than~~ not exceeding the
3 equivalent of the average amount of resident tuition for which an
4 eligible Tulsa Reconciliation Education and Scholarship Program
5 participant enrolled at an institution of higher education in The
6 Oklahoma State System of Higher Education or a postsecondary career
7 and technology education program, whichever is applicable, is
8 obligated to pay. The scholarship shall be paid as provided for in
9 Section 2625 of this title. The further purpose of this program is
10 to establish and maintain a variety of educational support services
11 whereby ~~residents~~ students who qualify for the program will be
12 prepared for success in postsecondary endeavors.

13 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2623, is
14 amended to read as follows:

15 Section 2623. A. Subject to the availability of funds, the
16 Oklahoma State Regents for Higher Education ~~may~~ shall annually award
17 ~~a maximum of up to~~ up to three hundred full-time-equivalent scholarships
18 for the Tulsa Reconciliation Education and Scholarship Program to
19 ~~residents~~ :

20 1. Qualified high school students of the Tulsa School District
21 who are direct lineal descendants as defined in subsection C of this
22 section;

23 2. Qualified high school students of the Tulsa School District;
24 and

1 3. Qualified students of any other public school district in
2 this state who are direct lineal descendants as defined in
3 subsection C of this section,
4 who are intending to pursue studies at an institution of higher
5 education in The Oklahoma State System of Higher Education or a
6 private institution of higher education in this state or who are
7 intending to pursue studies in a postsecondary career and technology
8 education program in this state.

9 B. To qualify for a scholarship, the family income of an
10 applicant shall ~~satisfy the following criteria:~~

11 ~~1. The family income of the applicant,~~ from taxable sources ~~is~~
12 ~~not more than Seventy Thousand Dollars (\$70,000.00),~~ not exceed One
13 Hundred Twenty-eight Thousand Dollars (\$128,000.00) per year. The
14 income limitation prescribed by this subsection shall be adjusted
15 annually by the annual percentage change in the Consumer Price
16 Index, as published by the United States Bureau of Labor Statistics,
17 for the preceding year. There shall be no family income limit for
18 an applicant who is a direct lineal descendant as defined in
19 subsection C of this section. The Free Application for Federal
20 Student Aid (FAFSA) form may be used to verify family income.

21 ~~2. The applicant attended a Tulsa public school where seventy-~~
22 ~~five percent (75%) or more of the students enrolled in the school~~
23 ~~qualify for the free and reduced lunch program; and~~

1 ~~3. The applicant resides in a census block area within the~~
2 ~~Tulsa School District where thirty percent (30%) or more of the~~
3 ~~residents are at or below the poverty level established by the~~
4 ~~United States Bureau of the Census.~~

5 C. ~~The Regents may consider as a factor, when determining the~~
6 ~~order of preference of applicants, whether~~ State Regents' selection
7 process shall give first priority status to an applicant who is a
8 senior in high school and a direct lineal descendant of a person who
9 resided in the Greenwood Area in the City of Tulsa between April 30,
10 1921, and June 1, 1921, and was a victim of the 1921 Tulsa Race
11 Massacre. ~~If the Regents use~~ Use of descent as a preference factor,
12 ~~it~~ shall be applied to all applicants regardless of race. The
13 applicants shall be required to present verifiable documentation of
14 their lineage. ~~The Oklahoma Historical Society~~ An organization or
15 individual engaged in genealogy and research of descendants and
16 history of the 1921 Tulsa Race Massacre and Greenwood Area shall
17 verify the authenticity and accuracy of the documentation submitted
18 by an applicant and shall ~~establish~~ confirm the boundaries of the
19 Greenwood Area. Verifiable documentation shall include, but not be
20 limited to, the following:

21 1. Family records including family bibles, vital records,
22 correspondence, memoirs, journals, diaries, unrecorded deeds,
23 diplomas, certificates, or testimonials;

1 2. Public records including censuses, government records,
2 military records, pensions, land bounty records, passport
3 applications, passenger lists, original grants, naturalization or
4 immigration records, records of entry, or state, province, or local
5 records; or

6 3. Institutional records including church records, cemetery
7 records and inscriptions, education institutions, insurance records,
8 or societies and fraternal organizations.

9 D. The State Regents shall promulgate rules establishing the
10 application requirements for the program and the system for
11 evaluating applications based on the preference factors. The rules
12 shall include the eligibility criteria specified in Section 2624 of
13 this title and any other relevant criteria as determined by the
14 State Regents. The application form shall include a small outlined
15 box graphic, followed by the following language: "Mark the box if
16 you are a direct lineal descendant of a victim greatly impacted
17 socially and economically during the 1921 Tulsa Race Massacre who
18 resided in the Greenwood Area of Tulsa, Oklahoma, between April 30,
19 1921, and June 1, 1921."

20 E. Applicants shall also meet the eligibility criteria
21 established in Section 2624 of this title.

22 ~~F. The Oklahoma State Regents for Higher Education shall also~~
23 ~~be authorized to annually award scholarships for the Tulsa~~
24 ~~Reconciliation Education and Scholarship Program to two students at~~

1 ~~each of the high schools in the Tulsa School District for the~~
2 ~~purpose of preserving awareness of the history and meaning of the~~
3 ~~civil unrest that occurred in Tulsa in 1921. The following~~
4 ~~provisions shall apply to the scholarship provided in this~~
5 ~~subsection:~~

6 ~~1. Notwithstanding the provisions of subsection B of this~~
7 ~~section, eligibility for the scholarships awarded pursuant to this~~
8 ~~subsection shall be:~~

9 ~~a. enrollment in the appropriate high school,~~

10 ~~b. family income of the applicant from taxable sources~~
11 ~~not to exceed Seventy Thousand Dollars (\$70,000.00)~~
12 ~~per year,~~

13 ~~c. satisfaction of the criteria specified in Section 2624~~
14 ~~of this title, and~~

15 ~~d. any other relevant criteria determined by the Oklahoma~~
16 ~~State Regents for Higher Education;~~

17 ~~2.~~ 1. The State Regents shall involve the administration of
18 the Tulsa School District and a community advisory committee in the
19 selection process. The community advisory committee shall be
20 comprised of seven (7) members appointed by the Chancellor of Higher
21 Education. The community advisory committee shall be comprised of:

22 a. the President of Langston University or his or her
23 designee,

- 1 b. the Superintendent of Tulsa Public Schools or his or
2 her designee,
- 3 c. two members of the Legislature representing the
4 Greenwood Area in the City of Tulsa or their
5 designees,
- 6 d. two descendants of socially and economically adversely
7 impacted persons who resided in the Greenwood Area in
8 the City of Tulsa between April 30, 1921, and June 1,
9 1921, and
- 10 e. a citizen with ties to the historic Greenwood
11 community who may be engaged in faith-based,
12 education, or social, business, or advocacy work.

13 The President of Langston University, or his or her designee,
14 shall be responsible for coordinating with the community advisory
15 committee and shall submit to the Chancellor of Higher Education a
16 list of proposed committee members for review and approval. The
17 community advisory committee shall review scholarship applications
18 and make recommendations for scholarship recipients and scholarship
19 award amounts. The State Regents shall select scholarship
20 recipients from the list of recommendations provided pursuant to
21 this paragraph;

22 ~~3. The award shall be limited to a one-year full-time-~~
23 ~~equivalent period. Following successful completion of such award~~

1 2. To retain eligibility for scholarships awarded pursuant to
2 this subsection, recipients ~~who~~ shall meet the criteria provided in
3 subsection B of this section ~~shall be eligible to apply and be~~
4 ~~considered for continued participation in the full Tulsa~~
5 ~~Reconciliation Education and Scholarship Program~~. Any student
6 ~~subsequently~~ awarded such scholarship shall have the duration of the
7 scholarship provided pursuant to this subsection deducted from the
8 limits set in subsection D of Section 2625 of this title;

9 ~~4.~~ 3. The award may only be funded with state funds
10 appropriated to the Tulsa Reconciliation Education and Scholarship
11 Trust Fund and income therefrom, and shall be made subject to the
12 availability of such funds; and

13 ~~5.~~ 4. The awards made pursuant to this subsection shall be
14 included within the maximum number of scholarships specified in
15 subsection A of this section.

16 G. No more than five percent (5%) of scholarships awarded
17 pursuant to the Tulsa Reconciliation Education and Scholarship Act
18 shall be provided to nontraditional students. For the purposes of
19 this section, a nontraditional student is an applicant who is
20 twenty-six (26) years of age or older. In awarding scholarships to
21 nontraditional students, priority shall be given to applicants who
22 are direct lineal descendants as defined in subsection C of this
23 section.

SECTION 3. AMENDATORY 70 O.S. 2021, Section 2625, is amended to read as follows:

Section 2625. A. Subject to the availability of funds, an amount of not more than the equivalent of the average amount of resident tuition for which an eligible Tulsa Reconciliation Education and Scholarship Program participant enrolled in an institution in The Oklahoma State System of Higher Education, or enrolled in a postsecondary career and technology education program, whichever is applicable, is obligated to pay shall be awarded by allocation from the Tulsa Reconciliation Education and Scholarship Trust Fund.

B. Subject to the availability of funds, for each eligible Tulsa Reconciliation Education and Scholarship Program participant enrolled at a private institution of higher education, the Oklahoma State Regents for Higher Education shall award from the Tulsa Reconciliation Education and Scholarship Trust Fund an amount of not more than the equivalent of the average amount of resident tuition for which the participant would be eligible if the participant were enrolled in a program at an institution of The Oklahoma State System of Higher Education.

C. Subject to the availability of funds, an amount of not more than the equivalent of the average amount of tuition for which an eligible Tulsa Reconciliation Education and Scholarship Program participant enrolled in a postsecondary career and technology

1 education program is obligated to pay shall be awarded by allocation
2 from the Tulsa Reconciliation Education and Scholarship Trust Fund.
3 The allocation shall not exceed the amount a participant would have
4 received for enrollment at a two-year institution within The
5 Oklahoma State System of Higher Education.

6 D. Benefits awarded under the Tulsa Reconciliation Education
7 and Scholarship Program shall not be allowed for courses or other
8 postsecondary units taken in excess of the requirements for
9 completion of a baccalaureate program or taken more than five (5)
10 years after the student's first semester of participation in the
11 program. The Oklahoma State Regents for Higher Education may award
12 the Tulsa Reconciliation Education and Scholarship Program benefits
13 for courses of postsecondary units taken more than five (5) years
14 after the student's first semester of participation in the program
15 only in hardship circumstances. No Tulsa Reconciliation Education
16 and Scholarship Program participant may receive benefits beyond a
17 cumulative time period of five (5) years. The Oklahoma State
18 Regents for Higher Education may establish a maximum limit on the
19 number of courses or other postsecondary units to which Tulsa
20 Reconciliation Education and Scholarship Program benefits will
21 apply. An award to an eligible Tulsa Reconciliation Education and
22 Scholarship Program participant who is enrolled in a postsecondary
23 career and technology education program may be used to pay for both
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1 career and technology education and college work if both are
2 required by the program.

3 E. Benefits awarded under the Tulsa Reconciliation Education
4 and Scholarship Program shall be awarded to not more than ~~300~~ three
5 hundred eligible participants annually, subject to the amount of
6 funds available for the program and the number of eligible
7 participants. ~~Subject to the provisions of subsection F of this~~
8 ~~section, if~~ If funds are not sufficient to provide awards for the
9 maximum number of eligible participants each year, the Oklahoma
10 State Regents for Higher Education shall make awards on the basis of
11 need. The Oklahoma State Regents for Higher Education shall take
12 into consideration other grants and scholarships received by an
13 eligible student when making awards. If an eligible student
14 receives other grants and scholarships, the benefits awarded under
15 the Tulsa Reconciliation Education and Scholarship Program may cover
16 any additional educational costs not covered by the other grants and
17 scholarships including, but not limited to, fees, required textbooks
18 or materials, and room and board. If the family of an eligible
19 Tulsa Reconciliation Education and Scholarship Program participant
20 may qualify for the federal Hope Scholarship or Lifetime Learning
21 tax credit as provided for in the Taxpayer Relief Act of 1997, P.L.
22 No. 105-34, the participant may elect to use the award allowed by
23 this section to pay for fees, required textbooks or materials and,
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1 if any funds remain, to pay for room and board instead of resident
2 tuition.

3 F. The Oklahoma State Regents for Higher Education may, at the
4 time an award is made on behalf of a Tulsa Reconciliation Education
5 and Scholarship Program participant, set aside in the Tulsa
6 Reconciliation Education and Scholarship Trust Fund funds for the
7 full commitment made to such Tulsa Reconciliation Education and
8 Scholarship Program participant. For all academic years,
9 participants who have previously received awards under the
10 provisions of the Tulsa Reconciliation Education and Scholarship Act
11 and who have continued at all times to fulfill the requirements for
12 eligibility to receive awards provided pursuant to this program
13 shall be given ~~an absolute~~ priority for continued financial support
14 by the Tulsa Reconciliation Education and Scholarship Program
15 superior to any ~~residents~~ students who are applying for such
16 benefits for the first time; provided, however, that scholarship
17 applicants who are direct lineal descendants as defined in
18 subsection C of Section 2623 of this title shall always be given
19 first priority status.

20 SECTION 4. It being immediately necessary for the preservation
21 of the public peace, health, or safety, an emergency is hereby
22 declared to exist, by reason whereof this act shall take effect and
23 be in full force from and after its passage and approval.

1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives